



We understand your world

TERMS AND CONDITIONS

This document lays out the Terms and Conditions which shall be applicable to all the Account(s) which are existing or may be opened any time in future with HDFC Bank. The words, I, me and my refer to the person(s) who open the accounts and shall include both singular and plural. The words The Bank refers to HDFC Bank Ltd., a banking company incorporated in India under the Companies Act 1956 and having its registered office at HDFC Bank House, Senapati Bapat Marg, Lower Parel, Mumbai 400013.

1. GENERAL - APPLICABLE TO ALL SERVICES

- 1.1 I agree to abide by the Bank's Terms and Conditions and rules in force and the changes there to in Terms and Conditions from time to time relating to my account.
- 1.2 I agree that the opening and maintenance of the account is subject to rules and regulations introduced or amended from time to time by the Reserve Bank of India.
- 1.3 I agree that the bank will be at liberty to close my account any time without assigning any reason whatsoever.
- 1.4 I agree that the bank can, at its sole discretion, withdraw any of the services/facilities given in my account either wholly or partially at any time by giving a one months notice.
- 1.5 I agree that any change in my account status or change of address will be immediately informed to the Bank.
- 1.6 I agree that all instructions relating to my account will be issued in writing satisfactory to the Bank in form and content.
- 1.7 I agree to preserve my cheque book/ATM card carefully. In case of loss/theft of the same I shall immediately inform the Bank in writing.
- 1.8 I agree that I will maintain the minimum balance in my account as prescribed by the bank.
- 1.9 I agree that I shall be liable to pay all charges, fees, interest, costs wherever applicable, which the Bank in its absolute discretion may levy with respect to my account or any transaction and the same may be recovered by the Bank by a debit to my account.
- 1.10 I agree that I shall not pay any amount in cash to any Sales Representative of the Bank at the time of opening an account or carrying out any transaction in the normal course of the business. I agree to deposit cash only at the Teller counters or the ATM.
- 1.11 I agree to accept the format provided by the Bank in order to execute my fax instructions to the Bank.
- 1.12 I agree that Bank will unless requested by me in writing to the contrary issue cheque book on the opening of my account. Further issue of cheque books will be only against written requisition by me or by using a valid login through ATM, PhoneBanking or NetBanking.
- 1.13 An account may be opened on behalf of a minor by his/her natural guardian or by a guardian appointed by a court of Competent Jurisdiction. The guardian shall represent the minor in all transactions of any description in the above account until the said minor attains majority. Upon the minor attaining majority, the right of the guardian to operate the account shall cease. The guardian agrees to indemnify the Bank against the claim of above minor for any withdrawal/transactions made by him in the minor's account.
- 1.14 I agree and undertake to ensure that there would be sufficient funds/cleared balance/pre-arranged credit facilities in my account for effecting transactions. I agree that the bank shall not be liable for any consequences arising out of non-compliance by the bank of my instructions due to inadequacy of funds and the bank can at its sole discretion decide to carry out the instructions notwithstanding the inadequacy of funds. The Bank may do the aforesaid without prior approval from or notice to me and I shall be liable to repay with interest the resulting advance, overdraft or credit thereby created and all related charges arising thereby @ Prime Lending rate +5% p.a. compounded quarterly.
- 1.15 I agree that in the event of an account being overdrawn, the Bank reserves the right to set off this amount against any credit lying in any of my accounts without giving any notice to me.
- 1.16 I agree that the bank shall not be liable for any damages, losses (direct or indirect) whatsoever, due to disruption or non availability of any of services/facilities due to technical fault/error or any failure in telecommunication network or any error in any software or hardware systems.
- 1.17 I agree that the Bank may disclose, in strict confidence, to other institutions, such Personal Information as may be reasonably necessary for reasons inclusive of, but not limited to the following:-
 - i) For participation in any telecommunication or electronic clearing network;
 - ii) In compliance with a legal directive;
 - iii) For credit rating by recognized credit scoring agencies;
 - iv) For fraud prevention purposes;
 - v) To credit information bureaus.
- 1.20 I/We give our consent to the Bank to disclose information provided in the Account Opening Form for the purpose of cross selling by HBL Global Ltd and any other marketing agent/s and/or contractors with whom the Bank enters, or has entered into any arrangement in connection with providing of services / products, including without limitation, cross selling of various financial products.
- 1.21 **Disclosure of Information to CIBIL**

I/We, understand that as a pre-condition, relating to grant of the loans/ advances/ other fund-based and non-fund-based credit facilities to me/ us, HDFC Bank, requires my / our consent for the disclosure by the bank of, information and data relating to me/ us, of the credit facility availed of / to be availed, by me/ us, obligations assumed / to be assumed, by me / us, in relation thereto and default, if any, committed by me/ us, in discharge thereof.

Accordingly, I/We, hereby agree and give consent for the disclosure by HDFC Bank of all or any such,

 - (a) information and data relating to me / us;
 - (b) the information or data relating to any credit facility availed of/ to be availed, by me / us, and
 - (c) default, if any, committed by me/ us, in discharge of my / our such obligation, as the bank may deem appropriate and necessary, to disclose and furnish to Credit Information Bureau (India) Ltd. and any other agency authorised in this behalf by RBI.

I/We, declare that the information and data furnished by me/ us to the bank are true and correct.

I/We, undertake that,

 - (a) The Credit Information Bureau (India) Ltd. and any other agency so authorised may use, process the said information and data disclosed by the bank in the manner as deemed fit by them; and
 - (b) The Credit Information Bureau (India) Ltd. and any other agency so authorised may furnish for consideration, the processed information and data or products thereof prepared by them, to banks/ financial institutions and other credit grantors or registered users, as may be specified by the Reserve Bank in this behalf.

2. SAVINGS ACCOUNTS

- 2.1 I agree to ensure sufficient balance in my savings account before issuing cheques.
- 2.2 **Salary Accounts**
- 2.2.1 **Reversal of Salary Credits**

I hereby irrevocably and unconditionally authorise the Bank to on the request of the employer/Company recover by debiting/reversal of credit, any excess amount credited by and/or on the instructions of the employer/company into my account, without any reference or notice to me. The Bank will not be held responsible and liable for any such debit/reversal of credit carried out by the Bank.
- 2.2.2 **Closure of Salary Accounts**

I acknowledge that my account has been opened with the Bank by virtue of my employment with the employer/Company and is designated as "salary account". I understand that pursuant to the arrangement between the employer/Company and the Bank, at the sole discretion of the Bank I may be entitled for certain facilities on the salary account only during the currency of my employment with the employer/company. I hereby agree that the Bank may at its sole and absolute discretion discontinue any of the said facilities completely or partially on the salary account & close the salary account if noticed that no amounts are credited by and/or on the instructions of the employer/Company to the salary account regularly or in the event of my ceasing to be in the services of the employer/Company for any reason whatsoever.

The words "the employer/company" refers to the corporate in which I am employed and on whose request the salary account is opened with the Bank.
- 2.3 **Kid's Advantage Account**
 - 2.3.1 An account may be opened on behalf of a minor by his/her natural guardian or by a guardian appointed by a court of competent jurisdiction. The guardian shall represent the minor in all transactions of any description in the above account until the said minor attains majority. Upon the minor attaining majority, the right of the guardian to operate the account shall cease.
 - 2.3.2 The guardian agrees that the minor's account will not be entitled to any overdraft or any borrowing facility whatsoever.
 - 2.3.3 If for any reason there is inadequate balance or the minor's account is overdrawn, the bank shall be entitled to dishonour any cheques drawn on the said account without being liable for any

consequences arising therefrom.

- 2.3.4 The guardian agrees that on issue of ATM/Debit card all the terms and conditions as applicable to ATM/Debit card and its usage mentioned herein shall apply.
- 2.3.5 The guardian agrees and acknowledges that the withdrawal by the minor, including through use of ATM/Debit card, attach no liability to the minor personally on account of minority. Accordingly, the whole of such liability is assumed by the guardian and shall be discharged by the guardian alone. The guardian shall be fully bound by all debits to the minor's account including through use of ATM/Debit cards.
- 2.3.6 The guardian agrees that the bank shall be entitled without any notice to debit any of his/her accounts to recover all charges, fees, interests, costs or any amounts overdrawn from the minor's account.
- 2.3.7 In the event any special facility such as life insurance cover for the guardian is offered in the minor's account, the provision of clause 14.102 & 14.103 hereunder shall apply mutatis mutandis. The guardian agrees that the bank may disclose in strict confidence to the insurance company any personal information for any purposes arising out of or in connection with such insurance cover.
- 2.3.8 The guardian agrees to indemnify the Bank against all actions, claims, demands, proceedings, damages, losses, costs, charges and expenses whatsoever which the bank may at any time incur, sustain, suffer or be put to as a consequence of or arising out of opening and operation of the minor account including withdrawal/transactions through use of ATM/Debit card and further against all and any claims of the minor for any withdrawal/transactions made by the guardian in the minor's account.

3. CURRENT ACCOUNTS

- 3.1 I hereby declare that I am not enjoying credit facilities with any of the Bank's branches or any other bank at the time of opening this current account. I undertake to inform the Bank in writing in case any credit facility is availed of by me
- 3.2 I agree to repay to the Bank on demand, unconditionally, the amounts of overdrafts that the Bank may grant to me from time to time, together with interest accrued thereon. I agree that this does not imply that the Bank is bound to grant me any credit facility whatsoever.

4. FIXED DEPOSITS

- 4.1 I agree that the stipulated interest tax on interest earned on Fixed Deposits be deducted at source as directed by the Government of India.
- 4.2 I agree to the Bank issuing certificate in the prescribed form for tax deducted at source on interest on Fixed Deposits, at the end of the Bank's Financial Year only.
- 4.3 I agree that on maturity of my fixed deposit, in absence of my written instructions on disposal, the Bank reserves the right at its discretion to renew the deposit along with accrued interest thereon at prevailing rates of interest.
- 4.4 I agree that if the Bank permits me to make a premature withdrawal of my fixed deposit, the recovery of interest already paid or the penalty may be recovered from the proceeds of the fixed deposit, in accordance with prevailing regulations of the bank and the Reserve Bank of India.
- 4.5 Pre-mature withdrawal of a Fixed Deposit is allowed only at the branch where the account is opened.
- 4.6 Maturity amount of a Fixed Deposit is paid only at the branch where the account is opened.

5. SUPERSAVER ACCOUNTS / FACILITY

- 5.1 In consideration of the bank agreeing to grant me a Temporary Overdraft facility for an amount not exceeding the predefined limit which will not exceed 90% of the amount/s that may be held by the bank in term deposits on my behalf, I hereby agree, record and confirm, that the bank shall have a first charge on the amount/s of such term deposits (which expression shall mean and include all such amounts standing to my credit in the Term Deposit account with the Bank and whether such sums are additional to or by way of renewal of or replacement for any sums deposited/to be deposited by me with the Bank or otherwise together in each case with all and any interest accruing in respect thereof) as a continuing security for the due repayment by me to the bank on demand of all the sums which at any time or from time to time become due and owing by me to the bank in respect of the said Temporary Overdraft Facility and all interests, costs, charges, expenses, and other amounts whatsoever which may become due and payable by me to the Bank.
- 5.2 I hereby irrevocably and unconditionally agree that the bank shall be entitled to discontinue or terminate the said Temporary Overdraft Facility at any time without notice to me.
- 5.3 I hereby irrevocably and unconditionally authorise the Bank to appropriate, adjust and set off the amount/s of such Term Deposits towards the dues of the Bank in the event of my failure to pay the amount demanded from me by the Bank, the demand of the bank being conclusive as to my liability for repayment thereof and for the said purpose.
- 5.4 I hereby irrevocably and unconditionally authorise the Bank to, basis my consent terminate all or any part of the term deposit prior to the maturity date thereof.

6. SWEEP IN INSTRUCTIONS

- 6.1 All sweep in accounts will have the same title.
- 6.2 All sweep in deposits will be for a predetermined period only.
- 6.3 I authorise the Bank to break units of deposits formed due to sweep out instruction in case there is insufficient balance in my linked savings/current account.

7. ATM USABLE CARDS

- 7.1 FEES I/We agree that all fees/taxes/surcharges/Service charges and all other levies related to the ATM usable card may be recovered by the Bank by debit to my /our account.
- 7.2 TRANSACTIONS RESPONSIBILITY I/We will be responsible for all types of transactions processed by use of my/our ATM usable card, whether or not processed with my/our knowledge or authority, express or implied. I/We shall accept the Bank's record of transactions as conclusive and binding for all purposes.
- 7.3 CASH WITHDRAWAL LIMITS I/We will be allowed to withdraw through the ATM, only a pre-defined amount of cash everyday, irrespective of the credit balance in my/our account. This amount will be determined by the Bank and may be changed at any time at the Bank's sole discretion without notice to me/us. I/We agree that cash withdrawals will be subject to tax as applicable from time to time.
- 7.4 OVERDRAWN ACCOUNTS I/We agree not to attempt to overdraw cash from the ATM unless sufficient funds are available in my/our account. The onus of ensuring adequate account balances is entirely on me/us. In case my/our account gets overdrawn due to cash withdrawal from the ATM, I/We agree to rectify the account balance position immediately. In case my /our account gets overdrawn, the Bank may levy any charge, that it deems fit in addition to the interest to be charged on the debit balance on my/our account.
- 7.5 DEPOSITS I/We agree that a receipt will be produced by the ATM for all cash/cheque deposits, and that no separate receipt will be issued by the Bank. The amount of deposit will be verified by the Bank's staff / authorised representative, and this verified amount shall be deemed to be the correct amount and binding on me/us conclusively.

I / We shall not deposit any cash in a Cheque Drop box nor deposit any cash / cheque in a Drop Box meant for collecting other documents / payments. I / We agree and acknowledge that in case I / We deposit any cash / cheque in the wrong Drop Box then the Bank shall not be liable for the same.

I / We acknowledge that no receipt will be issued for any cheque deposits in the Drop Box.

I / We understand that the bank will process the cheque deposited in the ATM machine or Cheque Drop box on the basis of the information provided by me/us in the Pay-in slip duly filled by me. The bank will not be held responsible for any wrong credits due to incorrect information provided by me/us in this regards. I / We shall hold the bank harmless for any consequences arising thereof.
- 7.6 PIN I/We understand that the Bank will allot to me a unique PIN (Personal Identification Number) which will allow me/us to access my/our account through the ATM. The Bank will despatch the PIN in a sealed envelope. On receipt, I/we shall ensure that the same is received by me/us in a sealed envelope. I / We shall be responsible to maintain the confidentiality of the PIN and not to reveal the PIN to any third party. I / We shall commit the PIN to memory and not record the PIN in a written or electronic format.
- 7.7 VALIDITY OF CARD - I / We agree that the ATM usable card at all times is the Bank's property. The validity period of the ATM usable card will be mentioned on the face of the card. I / We agree to surrender the card to the Bank in case of account closure or whenever demanded by the bank for any reason whatsoever.
- 7.8 LOST CARD - In case my/our ATM usable card is misplaced, stolen or otherwise lost, I/We agree to immediately report the event in writing to the Bank/call up Phone Banking. I/We understand that the ATM usable card will be cancelled by the Bank only during the working hours on a working day following the receipt of such intimation or 24 hours whichever is greater. The Bank shall not be liable for any loss by the misuse of the Card.
- 7.9 SECURITY OF CARD -- I / We agree to keep our ATM usable Card in Safe custody and agree not to hand over the Card to anyone including anyone who claims to represent the Bank. I / We understand that the Bank shall not be responsible for any mis-use of the Card by virtue of the same falling into wrong hands.
- 7.10 TRANSACTION NOT GETTING COMPLETED -- I / We understand that due to reasons like Power Supply getting discontinued / Lost Communication / Mechanical problems / ATM Machine problem / System problems, sometimes the ATM will not be able to complete the desired transaction. I / We understand that the Bank will not be responsible for any ATM transaction not getting completed.

I / We also understand that due to System Maintenance / ATM Machine errors , the ATM Machine may not dispense the complete amount of Cash that I / We have requested for . I / We understand that in such a scenario, I / We shall not hold the Bank responsible for not receiving the requested Cash . However , in case I / We find out that the Debit in my / our Account does not correspond to the amount of Cash dispensed then I / We will immediately raise the issue to the branch where I / We have opened the account. I / We understand that the Bank will do a thorough investigation of the same and revert to me with their final findings and decision and the decision of the Bank shall be final and binding on me / us .

7.11 **WRONG ENTRIES TO ACCOUNT PERTAINING TO ATM TRANSACTIONS ---** In case I / We find out that a wrong entry has been debited to my / our Account for ATM transactions done by me / us, I / We would immediately raise the issue with my / our Home Branch . I / We understand that the Bank will do a thorough investigation of the same and revert to me with their final findings and decision of the Bank shall be final and binding on me / us .

7.12 **AUDIT TRAIL TO BE FINAL AND CONCLUSIVE IN CASE OF ANY DISPUTE ---** I / We agree that in case of any dispute the Bank will be using the Audit Trail of the ATM (either in a Printed / non-editable Electronic Form) as the final and conclusive evidence in all Disputes. I / We agree to abide by the recordings of the Audit Trail .

7.13 In case, I / We receive a mutilated / torn/cut note(s) from the ATM, I / We will go to the Branch where I / We have opened the account and exchange the note(s) by submitting a letter and the transaction slip and confirming that I / We did the transaction at the ATM. Any other forms of claim will not be entertained.

8. PHONEBANKING

8.1 I accept that at my request the Bank has agreed to provide me the facility of carrying out banking transactions by giving instructions through the Interactive Voice Response system and/or verbally to a PhoneBanking officer (agent).

8.2 I am aware that in connection with such facility I am required to identify myself to the PhoneBanking system by using my Customer Identification Number and my Telephone Identification Number (TIN) and OR manual verification checks as decided by the Bank from time to time.

8.2.1 The bank has no means of verifying the identity of the person giving the telephone instructions in my name and will not hold the bank liable for any loss or damage incurred or suffered by me due to any error, defect, failure or interruption in the provision of PhoneBanking services arising from or caused by any reason whatsoever.

8.3 I agree that my TIN is confidential in nature and is known to me only. I undertake to inform the Bank immediately in case my TIN is lost/ceases to be secret/forgotten by me.

8.4 I agree that the PhoneBanking facility will be available and applicable to all my existing accounts and all other accounts that may be opened from time to time.

8.5 I unconditionally agree that I shall not hold the Bank liable for:

8.5.1 transactions resulting from carrying out my telephonic instructions in good faith

8.5.2 any delay or inability on its part in carrying out any telephonic instructions

8.5.3 transactions that are carried out on telephonic instructions given by unauthorised persons who have gained access to my confidential TIN

8.5.4 not carrying out such instructions where the Bank has reason to believe that the instructions are not genuine or are otherwise unclear, improper, vague or doubtful accepting instructions given by any one of us in case of joint accounts

8.5.5 not verifying the identity of the person giving the telephone instructions in my name for any loss or damage incurred or suffered by me due to any error, defect, failure or interruption in the provision of PhoneBanking services arising from or caused by any reason whatsoever

8.6 I agree that the bank can withdraw/suspend the PhoneBanking facility at any time either wholly/partially without prior notice to me

8.7 I agree that the record of the instructions given and transactions concluded over the phone shall be conclusive proof and binding for all purposes and can be used as evidence in any proceedings

8.8 I agree to give the Bank seven days notice in writing and obtain a receipt thereof in order to terminate the PhoneBanking services availed of by me

8.9 I agree that in the absence of any specific request from me for personally collecting the TIN, the same shall be sent to me by postal service/courier at my risk and consequences to the address notified by me for correspondence, and the bank shall not be liable or held responsible in any manner whatsoever, if the TIN falls in the hands of unauthorised person's.

8.10 I accept that in the event of my forgetting/losing/misplacing the TIN and requesting a new TIN, the bank may issue a new TIN online through the PhoneBanking system after the necessary authentication procedures based upon such request. I agree to keep the bank harmless at all times as a result of any consequences of such a TIN re-generation.

GOVERNING LAW

These terms and conditions and/or the operations in the accounts of the Customer maintained by the Bank and/or the use of the services provided through PhoneBanking shall be governed by the laws of the Republic of India and no other nation. The Customer and the Bank agree to submit to the exclusive Jurisdiction of the Courts located in Mumbai, India as regards any claims or matters arising under these terms and conditions.

The Bank accepts no liability whatsoever, direct or indirect, for non-compliance with the laws of any country other than the Republic of India. The mere fact that the PhoneBanking Service can be accessed by a Customer in a country other than India shall not be interpreted to imply that the laws of the said country govern these terms and conditions and/or the operations in the PhoneBanking accounts of the Customer and/or the use of PhoneBanking.

9. BILL PAY FACILITY

9.1 I agree and accept the services as provided by the Bank at my request to carry out my bill payments by phone banking/ATM instructions/Net banking/Mobile banking on my account will be given by me from time to time

9.2 I agree to provide my correct identification details as registered with the billing company. I agree to indemnify the bank from any liability due to erroneous information given by me in this regard

9.3 I agree that in case of any change in my identification details, it is my responsibility to communicate these changes as registered with the billing company to the Bank immediately

9.4 I agree that this facility will be available to me subject to and upon receipt of the billing company's confirmation as to the details furnished by me

9.5 I have no objections whatsoever to the billing company providing my billing details to the Bank

9.6 I agree that all billing and payment details will be prepared by electronic means and the information contained therein will be extracted from the computerised system maintained by the billing company and the bank respectively. The bank is not liable for any error in the statement and I shall always hold the bank harmless against any losses, damages etc. that may be incurred or suffered by me if the information contained turns out to be inaccurate/incorrect.

9.7 I agree that any disputes on bill details will be settled directly by me with the billing company and the bank's responsibility is limited to provision of information only.

9.8 I agree to pay the exact amount due as per the utility company's bill before the expiry of due date thereof and failing which I hold the bank harmless against the consequences thereof including in particular the non-payment of bill amount.

9.9 I unconditionally agree that I shall not hold the Bank liable for :

9.91 - such transactions that are carried out on my instructions in good faith

9.92 -not carrying out such instructions where the Bank has reason to believe (which decision of the bank I shall not question/dispute) that the instructions are not genuine or are other wise unclear, improper, vague or doubtful

9.93 -accepting instructions given by any one of us in case of joint accounts

9.94 -for any loss or damage incurred or suffered by me due to any error, defect, failure or interruption in the provision of bill payment services arising from or caused by any reason whatsoever

9.95 -withdrawing/suspending the facility wholly/partially without prior notice to me

9.10 I agree that the record of instructions given and transactions with the bank shall be conclusive proof and binding for all purposes and can be used as evidence in any proceedings

9.11 I agree that all transactions other than those executed instantaneously by the bank, that is those requiring processing by the bank/Billing company will be carried out only during business hours and the value dates if any, will follow the operating hours /days decided by the bank /billing company

9.12 I agree the bank is at liberty to withdraw at anytime, the Bill Payment facility, or any services provided thereunder, in respect of any or all the accounts without assigning any reason whatsoever and without giving me any notice

9.13 I agree to give the bank 15 days notice in writing and obtain an acknowledgment thereof in order to terminate the Bill Payments facility availed by me

9.14 I agree that all the conditions applicable to ATM services and phone banking services are binding on me in this regard

10. MOBILE BANKING

10.1 DEFINITIONS

In this section, the following words and phrases have the meaning set opposite them unless the context indicates otherwise:

10.2 **MOBILE BANKING** means facility of access to information relating to the saving / current account(s) / fixed deposit of the

customer and usage of products and/or other services as may be advised or made available on Mobile Phone by the BANK from time to time on / through MOBILE BANKING. The words MOBILEBANKING and MOBILE BANKING SERVICES are used interchangeably in this document.

10.3 **MOBILE PHONE** means the handset together with requisite accessories, equipment attachments and other software which is owned / possessed by the Cellular service subscriber.

10.4 **USER** refers to a customer of the BANK authorized to use the MOBILE BANKING service provided by the Bank.

10.5 **PERSONAL INFORMATION** refers to the information about the USER obtained in connection with the MOBILE BANKING service.

10.6 **CELLULAR SERVICE PROVIDER** hereafter referred to as 'CSP' refers to the GSM/CDMA service provider (for operation of mobile phones) who has entered into an agreement with the Bank for provision of Mobile Banking Services to its customers.

10.7 **APPLICABILITY OF TERMS AND CONDITIONS**
These TERMS AND CONDITIONS form the contract between the USER, the BANK, and the Cellular Service Provider (hereinafter referred to as the CSP) and shall be in addition to and not in derogation of the terms and conditions relating to any account of the User and / or the respective product or the service provided by the Bank, or the CSP.

10.8 **ELIGIBILITY**
Any customer of the Bank, having a saving and or current and or fixed deposit account authorised to operate singly or on either or survivor basis and who is also a current subscriber of the CSP. The User should have access to the Mobile Phone and knowledge of how the Mobile Phone works. The User should at all times possess the Mobile Phone software, which are required for using MOBILE BANKING.
In case of Minor accounts, only the natural guardian of the minor shall be eligible to avail of this service.

10.9 **REGISTRATION**
I agree that I shall be entitled to use the MOBILE BANKING Service only if my application is found in order and the relevant particulars are registered by the Bank and the CSP. The Bank and the CSP shall be at liberty to reject my application without assigning any reason.

10.10 **MOBILE BANKING**
The BANK shall endeavour to provide to the USER through MOBILE BANKING, such services as the BANK may decide from time to time. The Bank reserves the right to decide the type of services which a user may be offered on each account and may differ from user to user. The BANK may also make additions /deletions to the services offered through MOBILE BANKING at its sole discretion.

10.11 Only those accounts opened with the BANK and attached to the respective User's ID will be accessible through MOBILE BANKING.

10.12 There will be no obligation on the BANK to support all the versions of this Mobile Phone software.

10.13 **MOBILE BANKING ACCESS**
I agree that I shall use only my Mobile Phone to access the Mobile Banking Service of the BANK. The access is restricted to me on the specific Mobile Phone Number registered with the Bank for Mobile Banking. I shall not disclose my PIN number relating to the Mobile Phone, to any person or write/record it at any place whereby some other person can come to know my PIN no. I understand that in case I fail to follow / adhere to this I shall be solely responsible for consequences arising therefrom. I shall not attempt or permit others to attempt accessing the account information stored in the computers of the BANK through any unauthorised means. I must not let any other person have access to his Mobile Phone or leave the Mobile Phone unattended.

10.14 **AUTHORITY TO THE BANK**
I grant express authority to the BANK for carrying out the transactions performed by me through MOBILE BANKING. The BANK shall have no obligation to verify the authenticity of any transaction received from me through MOBILE BANKING or purporting to have been sent by me via MOBILE BANKING other than by means of verification of the Mobile Phone Number. The display that is produced by me at the time of operation of MOBILE BANKING is a record of the operation of the mobile access and shall not be construed as the BANK'S records of the relative transactions. The BANK'S own records of transactions maintained through computer systems or otherwise shall be accepted as conclusive and binding for all purposes unless I point out any discrepancy within a week from the date of receipt of periodical statement. All transactions arising from the use of MOBILE BANKING, to operate a joint account, shall be binding on all the joint account holders, jointly and severally.

10.15 **ACCURACY OF INFORMATION**
I am responsible for the correctness of information supplied by me to the BANK through the use of or through any other means such as electronic mail or written communication. Neither the BANK nor the CSP accepts any liability for the consequences arising out of erroneous information supplied by me. If I suspect that there is an error in the information supplied to the BANK by me, I shall advise the BANK as soon as possible. The BANK will endeavor to correct the error wherever possible on a 'best efforts' basis.
If I notice an error in the account information supplied to me through or by the use of any of the MOBILE BANKING services, I shall advise the BANK as soon as possible. The BANK will endeavour to correct the error promptly and adjust any interest or charges arising out of the error.
All outputs of statements are duplicate statements of account and will be prepared by electronic means and the information contained therein will be extracted from a computerized back up system maintained by the BANK. While the BANK will take all reasonable steps to ensure the accuracy of the statement, the BANK is not liable for any error. I shall hold the Bank harmless against any loss, damages, etc that may be incurred/ suffered by me if the information contained in the above said outputs turns out to be inaccurate/ incorrect.

10.16 **LIABILITY OF THE USER**
I shall not be liable for any unauthorized transactions occurring through the use of MOBILE BANKING which can be attributed to the fraudulent or negligent conduct of the employees or agents of the BANK.
I shall not be liable for losses arising out of the unauthorized transactions occurring in my accounts if I have complied with the TERMS and advise the BANK in writing under acknowledgement immediately after I suspect that my mobile phone number is / has been allotted to another person and/or notice an unauthorized transaction in my account, after a maximum of 2 days from the receipt of such advice by the BANK.
I agree that the access to Mobile Banking is through my Mobile Phone and any transaction which originates from the same, whether initiated by me or not shall be deemed to have originated from me.
I shall be liable for all loss from unauthorized transactions in my accounts if I have breached the TERMS or contributed or caused the loss by negligent actions such as the following:
i) Not advising the BANK in a reasonable time about unauthorized access to or erroneous transactions in the MOBILE BANKING accounts.
ii) In case of change in or termination of the Mobile Phone number/SIM Card, not informing the mobile service provider and the Bank about the change/ termination.
I understand that in the event of my Mobile phone getting lost or falling in the wrong hands, it can be misused. I indemnify the bank for any such misuse arising out of the same.

10.17 **LIABILITY OF THE BANK**
The BANK shall, in no circumstances, be held liable to me, if access is not available in the desired manner for reasons including but not limited to natural calamity, floods, fire and other natural disasters, legal restraints, faults in the telecommunication network or network failure, software or hardware error or any other reason beyond the control of the BANK. Under no circumstances shall the Bank be liable for any damages whatsoever whether such damages are direct, indirect, incidental, consequential and irrespective of whether any claim is based on loss of revenue, investment, production, goodwill, profit, interruption of business or any other loss of any character or nature whatsoever and whether sustained by the USER or any other person.
The Bank is in no way liable for the services provided by the CSP in relation to the Mobile phone.
The Bank is in no way responsible/liable for the charges levied by the CSP in relation to MobileBanking transaction.

10.18 **LIABILITY OF THE CSP**
The CSP and the Bank do not warrant the confidentiality or security of the messages whether personal or otherwise transmitted through Mobile Banking Service.
The CSP makes no warranty or representation of any kind in relation to the system and the network or their function or performance or for any loss or damage whenever and however suffered or incurred by the User or by any person resulting from or in connection with the Mobile Banking Service or the CSP network.
Without limitation to the other provisions of this agreement, the CSP, its employees, agents or contractors, shall not be liable for any loss or damage whether direct, indirect or consequential, including but not limited to loss of revenue, profits, business, contracts, anticipated savings or goodwill, loss of use or value of any equipment including software, whether foreseeable or not, suffered by the User or any other person howsoever arising from or relating to any delay, interruption, suspension, resolution of error of the bank and the Mobile Banking Service in receiving and processing the request and in formulating and returning responses or any failure, delay, interruption, suspension, restriction or error in the transmission of any information or message to and from the telecommunication equipment of the User and the CSP network and the bank's system or any break down, interruption, suspension or failure of the

telecommunication equipment of the User, the Bank's system or the CSP network. Notwithstanding herein to the contrary, the CSP shall not be involved in or in any way liable to the User for any dispute between the bank and the User.

10.19 INDEMNITY
I shall indemnify and hold the BANK and the CSP harmless against any loss suffered by the BANK, its customers or a third party or any claim or action brought by a third party which is in any way the result of the MOBILE BANKING by me.
I agree that the MOBILE BANKING service uses the network provided by the CSP. I hold the Bank harmless against any loss incurred by me due to failure in this network.

10.20 DISCLOSURE OF PERSONAL INFORMATION
I agree that the BANK or its contractors may hold and process my PERSONAL INFORMATION on computer or otherwise in connection with MOBILE BANKING services as well as for statistical analysis and credit scoring.

10.21 TERMINATION OF MOBILE BANKING SERVICE
I can request for termination of the Mobile Banking facility any time by giving a written notice of at least 15 days to the Bank. I agree that I will remain responsible for any transactions made on my MOBILE BANKING account(s) through MOBILE BANKING until the cancellation of my MOBILE BANKING Service.
The BANK may withdraw the MOBILE BANKING facility anytime and shall endeavour to give a reasonable notice under the circumstances.
The closure of all my accounts will automatically terminate the Mobile Banking Service. Similarly the Bank may suspend or terminate MOBILE BANKING facilities without prior notice if I have breached these terms and conditions.

10.22 NOTICES
The Bank may give notices under these Terms and Conditions, electronically to my mailbox (which will be regarded as being in writing), or in writing by delivering them by hand, or by sending them by post to the last address given by me and in the case of the Bank to its registered office. In addition, the Bank may also publish notices of general nature, which are applicable to all USERS of MOBILE BANKING on its web site. Such notices will have the same effect as a notice served individually to me.

11. INSTAALERT

11.1 Definitions:
In these Terms and Conditions, the following terms shall have the following meanings:
"Alerts" or "Facility" or "Alerts Facility" mean the customized messages based on Triggers, sent as Short Messaging Service ("SMS") over mobile phone or as a message via Email to the Customer;
"Account" means any Savings/Current account of the Customer with the Bank;
"Bank" means any branch in India of HDFC Bank Ltd with which the Customer's Account is maintained;
"Customer" means the person who holds an Account with the Bank;
"Triggers" means the customized triggers to be set or placed by the Customer or by the Bank with the Bank & its systems, with respect to specific events/transactions relating to his/her Account to enable the Bank to send the corresponding Alerts to the Customer.
"CSP" means the cellular service provider through whom the Customer or the Bank receives the mobile services

11.2 Availability
11.2.1 The customer has requested for this facility which bank at its sole discretion may discontinue at any time without any prior notice. The Facility is currently available only to resident and non resident Indian Customers with Accounts with the Bank's branches in India. The Bank may at its discretion extend the facility to Non resident customers in respect of mobile phones of CSP rendering services within cellular circles in India or email.
11.2.2 The SMS alert facility is available only in all regions in India. However, the email alerts is international in reach.
11.2.3 The Alerts will be sent to the Customer only if the Customer is within the cellular circles of the CSPs or in circles forming part of the roaming GSM network agreement between such CSPs.
11.2.4 The Bank may, wherever feasible, shall extend the Facilities to other cellular circles as well as to subscribers of other cellular telephone service providers, as will be notified by the Bank, from time to time.
11.2.5 A mobile phone/email trigger may not be made by the customer or Bank if the Account operations has been suspended for any reasons whatsoever.
11.2.6 The customer assumes full responsibility for the security and confidentiality of his / her Mobile Phone / mobile phone number and mobile phone identification number to be used in initially gaining access to his/her account(s) through the use of his/her mobile phone.

11.3 Process
11.3.1 To receive Alerts, the Customer may select and set all or any of the Triggers available under this facility by submission of the duly completed Registration form at any of the specified bank branches /locations. The form could also be downloaded/submitted electronically through the Bank's website www.hdfcbank.com subject to the introduction of the facility or format on the website. The customers can also register Online through HDFC Bank NetBanking. Alerts shall be sent to the Customer's mobile phone number and/or the E-mail id registered with the Bank.
11.3.2 The Customer is duty bound to acquaint himself with the detailed process for using the facility and the Bank is not responsible for any error / omissions by the Customer in setting the Triggers.
11.3.3 The Customer acknowledges that this facility of Alerts will be implemented in a phased manner and the Bank may at a later stage, as and where feasible, add more Triggers or Alerts. The Bank may, at its discretion, from time to time change the features of any Trigger or Alert. The Customer will be solely responsible for keeping himself updated of the available Triggers or Alerts, which shall, on best-effort basis, be notified by the Bank through its website or through any legally recognized medium of communication. The Customer may, from time to time, alter or add to the Triggers selected by him/her by prior written intimation to the Bank.

11.4 Setting Triggers and Receiving Alerts
11.4.1 The Bank is not bound to acknowledge the receipt of any Instructions or Triggers nor shall the Bank be held responsible to verify any Instructions or Triggers. The Bank shall endeavor to provide Instructions and Triggers on a best effort basis and wherever operationally possible for the Bank.
11.4.2 The Bank may, in its discretion, not give effect to any Triggers if the Bank has reason to believe with the apprehension (which decision of the Bank shall be binding on the Customer) that the Triggers are not genuine or otherwise improper or unclear or raises any doubt or in case any Triggers cannot be put into effect for any reasons whatsoever.
11.4.3 The Customer is solely responsible for intimating in writing to the Bank any change in his mobile phone number or e-mail address or account details and the Bank will not be liable for sending Alerts or other information over the Customer's mobile phone number/e-mail address recorded with the Bank.
11.4.4 The Customer acknowledges that to receive Alerts, his mobile phone must be in an "on" mode.
If the Customer's mobile phone is kept "off" for a specified period from the time of delivery of an Alert message by the Bank, that particular message may not be received by the Customer.
11.4.5 Triggers will be processed by the Bank after receipt and the processing time will be decided by the Bank, in its sole discretion. Initially, the alerts provided by the Bank on the mobile and/or the e-mail on any particular day, will have a certain time lag. The Customer acknowledges about being aware that the alerts being received are based on data available with the bank with a certain time lag. Select Alerts will be sent based on data updated as of the preceding working day. The customer also acknowledges that reasonable time may be taken for data processing for the purpose of sending Alerts on working days of the bank.
11.4.6 The Customer acknowledges that the Facility is dependent on the infrastructure, connectivity and services provided by the CSPs within India. The Customer accepts that timeliness, accuracy and readability of Alerts sent by the Bank will depend on factors affecting the CSPs and other service providers. The Bank shall not be liable for non-delivery or delayed delivery of Alerts, error, loss or distortion in transmission of Alerts to the Customer.
11.4.7 The Bank shall endeavour to provide the Facility on a best effort basis and the Customer shall not hold the Bank responsible / liable for non-availability of the Facility or non-performance by any CSPs or other service providers or any loss or damage caused to the Customer as a result of use of the Facility (including relying on the Alerts for the Customer's investment or business purposes) for causes which are not attributable to / and are beyond the control of the Bank. The Bank shall not be held liable in any manner to the Customer in connection with the use of the Facility.
11.4.8 The Customer accepts that each Alert may contain certain Account information relating to the Customer. The Customer authorizes the Bank to send Account related information, though not specifically requested, if the Bank deems that the same is relevant.

11.5 Withdrawal or Termination
11.5.1 The Bank may, in its discretion, withdraw temporarily or terminate the Facility, either wholly or in part, at any time. The Bank may, without prior notice, suspend temporarily the Facility at any time during which any maintenance work or repair is required to be carried out or in case of any emergency or for security reasons, which require the temporary suspension of the Facility.
11.5.2 Notwithstanding the terms laid down in clause 6.1 above, either the customer or the Bank may, for any reason whatsoever, terminate this agreement at any time upon prior written notice. Liabilities incurred by the customer shall, however survive the termination of this agreement.

11.6 Fees
11.6.1 As an introductory offer, the Facility is currently being made available by the Bank to the customer as a free of cost service till 31st August 2004. Subsequent to this period the Customer shall be liable to pay to the Bank such fees as may be applicable from time to time. The Customer shall be liable for payment of such airtime or other charges which may be levied by the CSP in connection with the receiving of the Alerts, which may be levied by the CSP as per the terms and conditions of the CSP and the Bank is in no way concerned with the same.
11.6.2 Unless otherwise waived by the bank, the customer shall pay the bank, its standard fees and charges for the use of the service. In this connection, the bank is hereby authorised by the customer to debit any of the customer's account with the bank.

11.7 Disclaimer
11.7.1 The Bank will not be liable for: (a) any unauthorised use of the Customer's identification number or (b) mobile phone number /instrument or unauthorised access to e-mails received at his notified email address for any fraudulent, duplicate or erroneous instructions /Triggers given by use of the same; (c) acting in good faith on any instructions /Triggers received by the Bank; (d) error, default, delay or inability of the Bank to act on all or any of the instructions /Triggers; (e) loss of any information/instructions /Alerts in transmission; (f) unauthorised access by any other person to any information /instructions /Triggers given by the Customer or breach of confidentiality.
11.7.2 The Bank shall not be concerned with any dispute that may arise between the Customer and the CSP and makes no representation or gives no warranty with respect to the quality of the service provided by the CSP or guarantee for timely delivery or accuracy of the contents of each Alert.
11.7.3 The bank shall not be held liable in the event that the mobile phone company/mobile phone service provider fails, for any reason whatsoever, to reload the prepaid airtime of the customer. The customer agrees that any complaint in connection with the reload service shall be referred to and addressed by the mobile phone company/service provider.

11.8 Disclosure
The Customer accepts that all information /Instructions /Triggers will be transmitted to and /or stored at various locations and be accessed by personnel of the Bank (and its affiliates/agents). The Bank is authorised to provide any information or details relating to the Customer or his Account to the CSPs or any service providers so far as is necessary to give effect to any instructions/ Triggers.

11.9 Liability and Indemnity
The customer shall indemnify and keep the bank free and harmless from and against all liabilities, losses, claims and damages arising from negligence, fraud, collusion or violation of the terms of this agreement on the part of the customer and/or a third party provided there is no gross negligence on the part of the Bank. In addition, the bank shall not be liable for any expense, claim, loss or damage arising out of or in connection with this agreement including but not limited to war, rebellion, typhoon, earthquake, electrical, computer or mechanical failures.

11.10 Amendment
The customer hereby, agrees to abide by, without need of notice, any and all future modifications, innovations, amendments or alterations in this agreement made by the bank

11.11 Miscellaneous
The above terms and conditions are in addition to the terms and conditions applicable to the Accounts agreed to by the customer.
All disputes are subject to the exclusive jurisdiction of the competent courts in Mumbai only.
Nothing expressed or implied shall in any way waive or amend any of the terms and conditions to the existing Terms and conditions agreement with HDFC Bank

12. NET BANKING
12.1 Definitions and Interpretations:
12.2 "Net Banking Terms and Conditions" shall mean the terms and conditions as modified from time to time applicable to NetBanking offered by the Bank.
12.3 "Confidential Information" refers to information obtained by the customer, through the Bank, for availing Services or Payment Instruction Services' Internet banking services ;
12.4 "Payment Instruction" shall mean an instruction given by a Customer to transfer funds from the Account held by the Customer to accounts held by other approved customers within the Bank or with any other Bank in India (select cities) and /or request to issue Demand Drafts (DD) in the name of the beneficiary who may or may not have an account with the Bank. The Bank may in its sole and exclusive discretion confine this facility only to certain permitted Customers or may extend it from time to time to be generally available to all customers;
12.5 INTERNET refers to the network of computers / mobile phones / other electronic devices which share and exchange information. The Internet is at once a worldwide broadcasting capability, mechanism for information dissemination, and a medium for collaboration and interaction between individuals and their computers / mobile phones / other electronic devices capable of accessing the Internet without regard for geographic location.
12.6 NETBANKING SERVICES is the Bank's Service which provides access to account information, products and other services as advised by the Bank from time to time to the Customers through the Internet. NetBanking service shall include the provision of the Demat accounts on the Internet. The terms NetBanking and NetBanking services/facility may be interchangeably used.
12.7 CUSTOMER refers to any person who has a Bank Account and/or a Demat Account and who has been authorised by the Bank to avail of the said facility.
12.8 ACCOUNT refers to the Customer's Savings and/or Current Account and/or Fixed Deposit or DP account opened in NSDL or CDSL or any other type of account so designated by the Bank to be eligible account(s) for operations through the use of NetBanking / NetDP.
12.9 PERSONAL INFORMATION refers to the information about the Customer obtained in connection with NetBanking.
12.10 APPLICATION FOR NETBANKING The Bank may offer NetBanking to selected Customers at its discretion. I agree that in order to be eligible for NetBanking I would need to be a current Internet user or have access to the Internet and knowledge of how the Internet works. I accept that the application for NetBanking does not automatically imply acceptance by the Bank.
12.11 SOFTWARE The Bank will advise from time to time the Internet software such as Browsers, which are required for using NetBanking. There will be no obligation on the Bank to support all the versions of this Internet software. I agree that I shall be responsible for upgrading my software, hardware and the operating system at my cost from time to time so as to be compatible with that of the Bank. The Bank shall be at liberty to change, vary or upgrade its software, hardware, operating systems, etc., from time to time and shall be under no obligation to support the software, hardware, operating systems used by me and that the same shall be my sole responsibility.
12.12 NETBANKING SERVICE The Bank shall endeavor to provide through NetBanking, such services as the Bank may decide from time to time. The bank reserves the right to decide the type of services that may be offered on each account and may differ from customer to customer. These facilities shall be offered in a phased manner at the discretion of the Bank. The Bank may also make additions/ deletions to the services offered through NetBanking at its sole discretion. The availability / non-availability of a particular service shall be advised through e-mail or web page of the Bank or written communication. All accounts opened with the Bank attached to the same Customer Identification Number will be accessible through NetBanking. In case of Joint accounts and accounts with two or more signatories, the bank will offer such services as restricted by the terms and conditions governing the operation of such accounts.
In case of Minor accounts, the natural guardian undertakes to give all instructions relating to the operation of the account and further undertakes not to reveal the Customer ID and Password to the minor.
The Bank shall take reasonable care to ensure the security of and prevent unauthorized access to the NetBanking service using technology reasonably available to the Bank.
I agree that I shall not use or permit to use NetBanking or any related service for any illegal or improper purposes

12.13 OTHER HOLDERS OF DEMAT ACCOUNT: refers to such holders other than the first named holder of the Demat Account. The NetBanking services of the bank for Demat Account is available to a Customer who has a DP account and a Bank

account in his / her name (i.e. the first holder of the DP account and the Bank account to be same). The Bank reserves its rights to consider any deviation to the above at its sole discretion.

The DP account will be attached to the Customer Identification Number and will be accessible through NetDP.

Wherever the Demat Account is jointly held by the customer, the other holders of the Demat account have the right to authorize the first holder to either query on the account or initiate transaction on the account and it will be binding on them.

The Customer further undertakes that he/she is exempting the Bank in sending of the fortnightly statements as required. The Customer shall query on the net for the transactions and holding information. The Customer agrees that the results of the query generated on the Internet shall substitute such statements.

The Customer acknowledges that all information provided in Demat Account of the NetBanking is obtained by the Bank from sources believed by the Bank to be accurate and reliable. Because of the possibility of human and technical error as well as other factors, Bank is not responsible for any errors or omissions. The development of the products and services of the Bank is a continuous process and published information on the Internet may not be upto date. The formats, update frequency and retention period of the information will be decided at the sole discretion of Bank. It is important to check the current position with your respective branch. All information is provided on 'as is' basis without warranty of the kind. The Bank makes no representation and disclaims all express, implied and statutory warranties of any kind to the user and/or any third party including warranties as to accuracy, timeliness, completeness, merchantability or fitness of the information for any particular purpose. All proprietary rights in the information received shall remain the property of the Bank. Reproduction, redistribution and transmission of any information contained on the web site is strictly prohibited. Access to this web site is a confirmation by you that you have understood and accepted these terms.

12.14 NETBANKING ACCESS

I understand that the Bank would allot me a Customer-ID and a NetBanking secret password in the first instance. I will be required to change the password assigned by the Bank on accessing NetBanking for the first time. As a safety measure I shall change the password as frequently thereafter as possible.

I agree that in the absence of any specific request from me for personally collecting the PIN, the PIN shall be sent to me by courier at my risk and consequences to the address notified by me for correspondence, and the bank shall be not liable or held responsible in any manner whatsoever, if the IPIN falls in the hands of unauthorised person/s.

In addition to Customer-ID and Password the Bank may, at its discretion, require me to adopt such other means of authentication including but not limited to digital certification and/ or smart cards.

I agree that I shall not attempt or permit others to attempt accessing the account information stored in the computers of the Bank through any means other than the NetBanking service.

I am aware that the transaction through NetBanking can be effected by use of my PIN only. I shall not request/demand any evidence of proof for transactions undertaken through the Net and the audit trail of the login would be conclusive proof to establish that the transactions are bonafide.

12.15 PASSWORD

I understand and agree that I must:

12.16 Keep the password totally confidential and not reveal the password to any third party

12.17 Choose a password that shall be at least 6 characters long and shall consist of a mix of alphabets, numbers and special characters which must not relate to any readily accessible personal data such as my name, address, telephone number, driving license etc. or easily guessable combination of letters and number

12.18 Commit the password to memory and not record them in a written or electronic form, and

12.19 Not let any unauthorized person have access to my computer or leave the computer unattended while accessing NetBanking.

12.20 In case I forget the NetBanking password, I can request for change of the password. Such replacement shall not be construed/deemed as the commencement of a new contract.

12.21 CHARGES

I authorize the Bank to recover all charges related to NetBanking as determined by the Bank from time to time by debiting my account

12.22 MAILING ADDRESS

All correspondence / delivery by the Bank shall only be made at the address and / or e-mail address as registered with the Bank.

12.23 TRANSACTION PROCESSING

All the requests for instantaneous transactions will be given effect to instantaneously. All the requests for non-instantaneous transactions such as Demand Draft Request, Fixed Deposit Opening etc. will be carried out at the end of the day on first in first out basis subject to availability of clear funds in the account authorised for debit. In case requests for effecting any transactions are received on weekly offs/holiday/public holidays, they shall be affected on the immediately succeeding working day on the terms and conditions prevailing on that day.

I shall not hold the Bank responsible for not processing/effecting any transactions in case the Bank does not receive instruction to this effect even though I have forwarded the same.

I hereby agree to abide by the following terms and conditions in addition to the terms and conditions as applicable to NetBanking:

I/We shall be free to utilise the Payment Instruction Services through NetBanking for transfer of funds for such purpose, as I/we shall deem fit

I/We however agree not to use or permit the use of the Payment Instruction Services or any related services for any illegal or improper purposes. Whilst utilising the Payment Instruction Services for making any payments for any goods purchased or any services obtained whether such I/We shall ensure that:

I/We have the full right and/or authority to access and avail of the services obtained and the goods purchased and I/We shall observe and comply with the applicable laws and regulations in each jurisdiction in applicable territories

I/We shall not involve the Bank as a party to such transaction

I/We shall provide the Bank with such information and/or assistance as is required by the Bank for the performance of the Services and/or any other obligations of the Bank under this Agreement.

I/We shall not at any time provide to any person, with any details of the accounts held by me/us with the Bank including, the passwords, account number, card numbers and PIN which may be assigned to me/us by the Bank from time to time.

12.24 Risks:

I/We hereby acknowledge that I/We are availing the Payment Instruction Service at my/our own risk. These risks would include but not be limited to the following risks:

12.25 Misuse of Password:

I/We acknowledge that if any third person obtains access to my/our password, such third person would be able to provide Payment Instructions to the Bank. I/We shall ensure that the terms and conditions applicable to the use of the password as contained in the Net Banking Terms and Conditions are complied with at all times.

Internet Frauds:

The Internet per se is susceptible to a number of frauds, misuse, hacking and other actions that could affect Payment Instructions to the Bank. Whilst the Bank shall aim to provide security to prevent the same, there cannot be any guarantee from such Internet frauds, hacking and other actions that could affect Payment Instructions to the Bank. I/We shall separately evolve/ evaluate all risks arising out of the same.

Mistakes and Errors:

The filling in of applicable data for transfer of funds and/or issue of Demand Drafts would require proper, accurate and complete details. For instance, I/We are aware that I/We would be required to fill in the account number of the person to whom the funds are to be transferred. Similarly in the case of request for DD I would be required to fill in the correct details such as the name of the payee (who may or may not have an account with the Bank), mailing address, amount of the DD and the city/state where the DD is payable. In the event of any inaccuracy in this regard, the funds could be transferred to incorrect accounts or the DD maybe incorrectly issued or sent to a wrong address and there is no guarantee of recovery thereafter. I/We shall therefore take all care to ensure that there are no mistakes and errors and that the information given by me/us to the Bank in this regard is error free, accurate, proper and complete at all points of time. I agree that the Bank is providing the Services at my sole risk. I agree that the Bank shall not be liable for any loss, damages or consequences whatsoever arising due to any erroneous or incomplete information or any delay in executing the instructions for reasons beyond the control of the Bank. On the other hand in the event of my Account receiving an incorrect credit by reason of a mistake committed by some other person, the Bank shall be entitled to reverse the incorrect credit at any time whatsoever without my /our consent. Customer I/We shall be liable and responsible to Bank and accede to accept the Bank's instructions without questions for any unfair or unjust gain obtained by me as a result of the same.

Transactions:

The transactions, which I/We may require, the transfer of the funds or issue of DD may not fructify or may not be completed by the parties to whom I/we request the Bank to transfer the funds or issue a DD. The Bank is not in any manner involved in the said transactions and contracts, and my/our sole recourse in this regard shall be with the party with whom I/We have the transactions. The Bank is merely providing me services whereby the said funds would be transferred on my/our instructions

The transaction(s) for transfer of funds as per my/our instruction may not fructify or may not be completed for any reason whatsoever, in such cases, I/We shall not hold the Bank responsible or involved in any manner in the said transaction(s) and contracts and my/our sole recourse in this regard shall be with the party to whom my/our instruction was favouring for the transfer of funds. The Bank is merely providing me/us the services whereby the said funds would be transferred at my /our instructions.

Technology Risks:

The technology for enabling the transfer of funds and the other services offered by the Bank could be affected by virus or other malicious, destructive or corrupting code, programme or macro. It may also be possible that the site of the Bank may require maintenance and during such time it may not be possible to process the request of the Customers. This could result in delays in the processing of instructions or failure in the processing of instructions and other such failures and inability. I/We understand that the Bank disclaims all and any liability, whether direct or indirect, whether arising out of loss of profit or otherwise arising out of any failure or inability by the Bank to honour any customer instruction for whatsoever reason.

I/We understand and I/We accept that the Bank shall not be responsible for any of the aforesaid risks. I/We also accept that the Bank shall disclaim all liability in respect of the said risks.

12.26 Limits:

I/We are aware that the Bank may from time to time impose maximum and minimum limits on transfer of funds that may be transferred or amount of the DD that can be issued by virtue of the payment transfer service given to me/us hereunder. I/We realise and accept and agree that the same is to reduce the risks on me/us. For instance, the Bank may impose transaction restrictions within particular periods or amount restrictions within a particular period or even each transaction limits. I/We shall be bound by such limits imposed and shall strictly comply with them.

12.27 Indemnity:

I/We shall indemnify the Bank from and against all losses and damages that may be caused as a consequence of breach of any of the NetBanking Terms and Conditions and the terms and conditions mentioned herein above.

12.28 Withdrawal of Facility:

The Bank shall be entitled to withdraw this service at any time whatsoever

12.29 Charges:

I/We hereby agree to bear the charges as may be stipulated by the Bank from time to time for availing of these services.

12.30 Binding nature of above terms and conditions:

I/We agree that by use of this facility, I/We shall be deemed to have agreed to all the above terms and conditions and such terms and conditions shall be binding on us in the same manner as if I/we have agreed to the same in writing.

12.31 AUTHORITY TO THE BANK

NetBanking transactions in the Customer's Account(s) are permitted only after authentication of the Customer-ID and Password. I/We agree that I/We grant express authority to the Bank for carrying out the banking transactions performed by me/us through NetBanking. The Bank shall have no obligation to verify the authenticity of any transaction received from me/us through NetBanking or purporting to have been sent by me/us via NetBanking other than by means of verification of my Customer-Id and the password.

The display or printed output that is produced by me at the time of operation of NetBanking is a record of the operation of the internet access and shall not be construed as the Bank's record of the relative transactions. The Bank's own record of transactions maintained through computer systems or otherwise shall be accepted as conclusive and binding for all purposes unless any discrepancy is pointed out within 15 days from the date of access or from the date of sending the periodical statement, whichever is earlier.

All transactions arising from the use of NetBanking, to operate a joint account, shall be binding on all the joint account holders, jointly and severally.

12.32 ACCURACY OF INFORMATION

I/We agree that I/We am responsible for the correctness of information supplied to the Bank through the use of NetBanking or through any other means such as electronic mail or written communication. The Bank accepts no liability for the consequences arising out of erroneous information supplied by me/us.

I/We agree that if I/We notice any error in the account information supplied to me/us through NetBanking or by the use of any of the NetBanking services, I/We shall advise the Bank as soon as possible. The Bank will endeavor to correct the error promptly and adjust any interest or charges arising out of the error.

All outputs of statements are duplicate statements of account and will be prepared by electronic means and the information contained therein will be extracted from a computerised back up system maintained by the Bank. While the Bank will take all reasonable steps to ensure the accuracy of the statement, the Bank is not liable for any error. I/We agree that I/We shall hold the bank harmless against any loss, damages, etc. that may be incurred/ suffered by me/us, if the information contained in the above said outputs turns out to be inaccurate / incorrect.

12.33 LIABILITY

I/We shall not be liable for any unauthorized transactions occurring through the use of NetBanking, which can be attributed to the fraudulent or negligent conduct of the employees of the Bank.

If I/We comply with the Terms and advise the Bank in writing under acknowledgment immediately after I/We suspect that my/our Customer-Id or password is known to another person and/or notice an unauthorized transaction in my/our NetBanking account, I/We shall not be liable for losses arising out of the unauthorized transactions occurring in the NetBanking accounts after the receipt of such advice by the Bank. I/We agree that I/We shall be liable for some or all loss from unauthorized transactions in the NetBanking accounts if I/We have breached the Terms or contributed or caused the loss by negligent actions such as the following.

12.34 Keeping a written or electronic record of NetBanking password.

12.35 Disclosing or failing to take all reasonable steps to prevent disclosure of the NetBanking password to anyone including Bank staff and/or failing to advise the Bank of such disclosure within reasonable time

12.36 Not advising the Bank in a reasonable time about unauthorized access to or erroneous transactions in the NetBanking accounts.

12.37 The Bank shall in no circumstances be held liable to the Customer if NetBanking access is not available in the desired manner for reasons including but not limited to natural calamity, floods, fire and other natural disasters, legal restraints, faults in the telecommunication network or Internet or network failure, software or hardware error or any other reason beyond the control of the Bank. The Bank shall under no circumstances shall be liable for any damages whatsoever whether such damages are direct, indirect, incidental, consequential and irrespective of whether any claim is based on loss of revenue, investment, production, goodwill, profit, interruption of business or any other loss of any character or nature whatsoever and whether sustained by me or any other person.

12.38 DISCLOSURE OF PERSONAL INFORMATION

I/We agree that the Bank or its contractors may hold and process my/our Personal Information on computer or otherwise in connection with NetBanking services as well as for statistical analysis and credit scoring. I/We also agree that the Bank may disclose, in strict confidence, to other institutions, such Personal Information as may be reasonably necessary for reasons inclusive of, but not limited to, the following

12.39 For participation in any telecommunication or electronic clearing network

12.40 In compliance with a legal directive

12.41 For credit rating by recognized credit scoring agencies.

12.42 For fraud prevention purposes.

12.43 BANK'S LIEN

The Bank shall have the right of set-off and lien, irrespective of any other lien or charge, present as well as future on the deposits held in my/our accounts whether in single name or joint name(s), to the extent of all outstanding dues, whatsoever, arising as a result of the NetBanking service extended to and/or used by me/us

12.44 PROPRIETARY RIGHTS

I/We acknowledge that the software underlying the NetBanking service as well as other Internet related software which are required for accessing NetBanking are the legal property of the respective vendors. The permission given by the Bank to access NetBanking will not convey any proprietary or ownership rights in the above software. I/We agree that I/We shall not attempt to modify, translate, disassemble, decompile or reverse engineer the software underlying NetBanking or create any derivative product based on the software.

12.45 NON-TRANSFERABILITY

The grant of facility of NetBanking to me/us is not transferable under any circumstance and shall be used only by me/us

12.46 TERMINATION OF NetBanking Service

I/We may request for termination of the NetBanking facility any time by giving a written notice of at least 15 days to the Bank. I/We agree that I/We will remain responsible for any transactions made on my/our NetBanking account(s) through NetBanking prior to the time of such cancellation of the NetBanking Service

The closure of all my/our Accounts will automatically terminate the NetBanking service.

The Bank may suspend or terminate NetBanking facilities without prior notice if these terms and conditions are breached.

12.47 NOTICES

The Bank and the I/We may give notices under these Terms and Conditions:
12.48 Electronically to the mailbox of either party. Such notices will be regarded as being in writing.
12.49 In writing by delivering them by hand or by sending them by post to the last address given by me/us and in the case of the Bank to the following address: HDFC Bank House, Senapati Bapat Marg, Lower Panel, Mumbai 400 013.
12.50 In addition, the Bank may also publish notices of general nature, which are applicable to all Customers of NetBanking on its web site. Such notices will have the same effect as a notice served individually to me/us.

12.51 GOVERNING LAW

These terms and conditions and/or the operations in the accounts of the Customer maintained by the Bank and/or the use of the services provided through NetBanking shall be governed by the laws of the Republic of India and no other nation. The Customer and the Bank agree to submit to the exclusive Jurisdiction of the Courts located in Mumbai, India as regards any claims or matters arising under these terms and conditions.
The Bank accepts no liability whatsoever, direct or indirect, for non-compliance with the laws of any country other than the Republic of India. The mere fact that the NetBanking Service can be accessed through Internet by a Customer in a country other than India shall not be interpreted to imply that the laws of the said country govern these terms and conditions and/or the operations in the NetBanking accounts of the Customer and/or the use of NetBanking

GENERAL

12.52 The clause headings in this agreement are only for convenience and do not effect the meaning of the relative clause. I/We shall not assign this agreement to anybody else. The Bank may subcontract and employ agents to carry out any of its obligations under this contract.

13 Visa Money Transfer

Terms & Conditions:

- 13.1 Visa Money Transfer offers the HDFC Bank Account Holder/ User, online funds transfer from his bank account to any domestic Visa Debit or Credit Card.
- 13.2 Visa Money Transfer is provided by HDFC Bank at the Account Holder/ User's request, which request shall mean the Account Holder/ User's authorisation for debiting the Account Holder/ User's account towards the amount of such transfer, together with the charges, if any.
- 13.3 To effect Visa Money Transfer, the Account Holder/ User shall provide to HDFC Bank all the information as required under the relevant screen including: Card Number, Amount etc. in absence of which the Bank shall not be liable to effect the Visa Money Transfer.
- 13.4 The Visa Money Transfer service is only applicable for credits to VISA Cards issued in India. This service is not applicable for cards issued by any other Issuing authority.
- 13.5 The Visa Money Transfer service is not applicable for transfers to Cards not issued in India.
- 13.6 While HDFC Bank shall endeavour to ensure that transfers are not made to any Card not issued in India, the onus shall lie on the customer to ensure that there are no FEMA or Exchange Control violations being done by him, and the customers shall be held liable for liability therein.
- 13.7 HDFC Bank shall send the transfer only to the Card number of the beneficiary. While the Bank may at its discretion obtain certain other details of the beneficiary like: Name, Address, Bank name etc. the Bank is in no way responsible to verify or authenticate the same.
- 13.8 While HDFC Bank shall endeavour to effect the Visa Money Transfer instruction at the earliest on receipt it does not guarantee or be held responsible for performance hereunder.
- 13.9 HDFC Bank shall process all transactions received till 12 midnight of the previous day on the next day.
- 13.10 All transactions shall be processed only on working days. Transactions done on Sundays and Bank holidays will be processed on the next working day
- 13.11 The Bank shall assume no responsibility for:
-Visa Money Transfer transactions carried out in good faith relying on Account Holder/ User's instructions.
-Not carrying out Visa Money Transfer transactions where the Bank has reason to believe in its sole discretion that the instructions are not genuine or are otherwise unclear, improper, vague, or doubtful.
-For the performance of VISA or any other entity involved in the process, and for any loss or damage incurred or suffered by the Account Holder/ User for any error, defect, failure or interruption of Visa Money Transfer service or consequences arising out of delayed payments.
- 13.12 HDFC Bank may also make additions/ deletions to the services offered through any of its channels at its sole discretion. The availability/ non-availability of a particular service shall be informed to the Account Holder through email, web site of the bank or by written communication.
- 13.13 The Customer is entirely responsible for providing the correct Card Number of the beneficiary. The Bank will process all transactions only on the basis of the information provided by the user. The Bank will not be responsible for any erroneous credit, if an erroneous card number is provided by the customer. The bank will also not be responsible to reverse such a wrong transaction.
- 13.15 HDFC Bank shall on best cases send the remittance within 24 hours of the transaction, however the Bank is not responsible for the period within which the beneficiary bank will credit the proceeds to the beneficiary card.
- 13.16 HDFC Bank shall offer this service only for Savings Account customers. If the Bank finds that the service is being used for a Current Account, the Bank reserves the right to discontinue the service without any prior notice to the customer
- 13.17 HDFC Bank reserves the right to not carry out the transaction at any time at its discretion.
- The use of this service will mean that the customer has read, understood and accepted the Terms & Conditions.

14. INTERNATIONAL DEBIT CARD

14.1 DEFINITIONS:

- In this document the following words and phrases have the meaning set opposite them unless the context indicates otherwise:
- 14.2 **Account** refers to the Cardholder's Savings and / or Current Account and / or any other type of account so designated by the Bank to be eligible account(s) for operations through the use of the Card. The Cardholder should be either the account holder or sole signatory or authorized to act alone when there is more than one signatory.
- 14.3 **Bank** refers to HDFC Bank Limited, a banking company incorporated in India under the Companies Act 1956 and having its registered office at Sandoz House, Dr. Annie Besant Road, Worli, Mumbai 400018, India and includes its successors and assigns.
- 14.4 **Card** refers to the HDFC Bank International Debit Card.
- 14.5 **Cardholder** refers to a customer of the Bank authorized to use the HDFC Bank International Debit Card.
- 14.6 **EDC terminal** shall mean point of service capable of handling Card transactions i.e. electronic draft capture (EDC) terminals, printers, other peripherals and accessories, including PIN pads and necessary software to run the devices and which processes the transaction at the Merchant Establishment.
- 14.7 **International transactions** refers to the transactions entered into by the Cardholder on his internationally valid debit card outside of India, Nepal and Bhutan.
- 14.8 **Maestro** shall mean a mark owned by MasterCard.
- 14.9 **MasterCard** shall mean a mark owned by MasterCard.
- 14.10 **MasterCard / Cirrus ATM Network** shall mean ATMs located which honour the Debit Card and display the MasterCard / Cirrus or Maestro Symbols.
- 14.11 **Merchant** means any person who owns or manages or operates a service establishment wherever located which honours the card and includes amongst others stores, shops, restaurants, hotels, airline organisations, ATMs advertised by the Bank, Visa / MasterCard or the Merchant.
- 14.12 **Merchant Establishment** shall mean establishments wherever located which honour a Debit Card and shall include among others, stores, shops, restaurants, hotels, airline organisations advertised as honouring a Debit Card.
- 14.13 **Primary Account** shall mean the account linked to the card, debited for transactions done at Merchant Establishments or Visa/PLUS and MasterCard / Cirrus ATM locations.
- 14.14 **Terms** refers to Terms and Conditions for use of the Card as specified in this document.
- 14.15 **Transactions** mean any instruction given by a Cardholder using a Card directly or indirectly to the Bank to effect a transaction.
- 14.16 **Visa Electron** shall mean mark owned by Visa International.
- 14.17 **Visa/plus ATM Network** shall mean ATMs located which honour the Debit Card and displaying the Visa / PLUS or Visa Electron Symbols.
- In the document, all references to the CARDHOLDER being referred in masculine gender will also include the feminine gender.
- 14.18 **APPLICABILITY OF RULES AND REGULATIONS**
- 14.19 The issue and use of the Card shall be subject to the RBI's regulations in force from time to time.
- 14.20 Utilization of the Card shall be in strict accordance with the Exchange Control Regulations of the Reserve Bank of India (RBI). In the event of noncompliance by Cardholder with the same, the Cardholder shall be liable for action under the FEMA, 1999 and any other Law and/or regulation in force from time to time relating to Foreign Exchange. The Cardholder

may be debarred from holding the Internationally valid debit card, either at the instance of the Bank or the RBI. The Card cannot be used for making payment towards foreign currency transactions in Nepal and Bhutan i.e. while using the Card in Nepal or Bhutan, the currency of the transactions should be the local currency of those countries or in Indian rupees. The Card is valid for use both in India as well as outside India but would carry the inscription 'Not valid for payment in foreign exchange in Nepal and Bhutan. In case the Card is cancelled, whether on account of non-compliance with Exchange Control Regulations or otherwise, the Bank will not be responsible for any attempted usage of the card, whether in India or abroad, resulting in the Card being dishonoured and the concerned Merchant would be entitled to 'seize/confiscate' a cancelled Card on presentation.

- 14.21 The card may be used, within the foreign exchange entitlements as stipulated by RBI from time to time, by Cardholders going abroad for all bonafide personal expenses for personal use provided, the total exchange drawn during the trip abroad does not exceed the entitlement. Import of goods so purchased abroad into India would be governed by the baggage rules/ EXIM policy in force. The entitlement of exchange should be ascertained (prior to the trip) from the authorised dealer branches of the Bank. The card cannot be used for effecting remittances for which the release of exchange is not permissible under the extant regulations.

14.22 VALIDITY

- 14.23 The card is valid in India and abroad.
- 14.24 The card is not valid for foreign exchange payments in India, Nepal and Bhutan.
- 14.25 The Card is valid up to the last working day of the month indicated. The Cardholder shall destroy the Card when it expires by cutting it in half diagonally. The Bank shall send your renewed Card to you before the expiry of the Card.

- 14.26 The Card is acceptable at any of the following:

- 14.27 The HDFC Bank's ATM network.
- 14.28 Any ATM of other Banks which are members of PLUS/CIRRUS ATM network in India and abroad.
- 14.29 Any Visa / Visa Electron / MasterCard / Maestro merchant outlet in India and abroad.

14.30 CARDHOLDER OBLIGATIONS

- 14.31 The Cardholder shall at all times ensure that the card is kept at a safe place. The Cardholder shall under no circumstance whatsoever allow the card to be used by any other individual. The Cardholder will sign the card immediately upon receipt.
- 14.32 The Card is the property of HDFC Bank and must be returned to an authorised person of the Bank on request. The Cardholder shall ensure that the identity of the authorised person of the Bank is established before handing over his Card.
- 14.33 The Cardholder will be responsible for all facilities granted by the Bank in respect of the Card and for all related charges.
- 14.34 In case the Cardholder has any dispute in respect of any charge indicated in the Statement, the Cardholder shall advise details to the Bank within 45 days of the statement date failing which, it will be construed that all charges are acceptable and in order. The Bank may at its sole discretion accept any disputes on charges older than 45 days.
- 14.35 The Cardholder shall act in good faith in relation to all dealings with the Card(s) and the Bank.

14.36 EASY SHOP GOLD DEBIT CARD

- 14.36.01 **Cash back**
The Cash back on the Gold Debit Card will be given in multiples of Rs. 250, subject to a minimum accrual of Rs. 250. The cash back will be given after the end of every month.

14.36.02 Petrol surcharge reversals

- The surcharge at the Petrol pumps will be levied at the time of the transaction, and subsequently reversed after the end of the month.

14.36.03 Special Offers at Premium outlets, Hotels and Restaurants

- All participating brands/ establishments are independently liable/ responsible for the quality of the goods/ services provided by them under this program.
Offer valid only if the purchase is made using the EasyShop Gold Debit Card.
Cardholder must clearly announce intention to avail of the discounts at the participating merchants offer before the bill is drawn/placing the order
HDFC Bank reserves the right to cancel the offer or reduce the length of the offer or change the terms and conditions without prior notice.

14.36.04 OTHER OFFERS

- For any zero surcharge offer on usage of Debit Card at Petrol pumps, surcharge will be levied at the time of the transaction, and subsequently reversed after the end of the month.

14.37 LOST OR STOLEN CARDS

- 14.38 If a Card is lost or stolen, the Cardholder must file a report with the local police and send a copy there after to the Bank. The Cardholder will be liable for all the charges incurred on the card until the card is hot-listed. In case of an unsigned card, the Cardholder will be liable for all charges incurred on it. The Cardholder may report a card loss over the telephone (Phone Banking) or by way of written communication by fax. The Bank upon adequate verification temporarily suspends the card and will not be liable for any inconvenience caused to the Cardholder on this account. The Bank will hot-list /cancel the Card within 24hrs. of receiving such information on a working day following the receipt of such intimation.

- 14.39 If the Cardholder loses his card overseas, he may either follow the above procedure or may report the loss through the Visa / MasterCard Global Emergency Assistance help-lines. In case the Cardholder use the Visa / MasterCard Global Emergency Assistance services then the charges for usage of such services shall be borne by the Cardholder.

- 14.40 The Cardholder shall take cognizance of the fact that once a Card is reported lost, stolen or damaged and is subsequently found, the same shall be promptly cut in half, returned to the Bank and adequate care taken to prevent its misuse.

- 14.41 The Cardholder is responsible for the security of the Card and shall take all steps towards ensuring the safe keeping thereof. In the event Bank determines that the aforementioned steps are questionable, financial liability on the lost or stolen card would rest with Cardholder.

- 14.42 Provided that the Cardholder has in all respects complied with the Terms and Conditions, placement Card may be issued at the sole discretion of the Bank.

14.43 SERVICES FROM VISA/MASTERCARD GLOBAL ASSISTANCE

- The communications and arrangements of services of the Emergency Assistance program are provided by a third-party service provider and are paid for by Visa/MasterCard International. The Cardholder is responsible for the cost of any and all medical, legal or other services used. Assistance is provided on a best effort basis and may not be available due to problems of time, distance or locations. The medical and/or legal professionals suggested and/or designated by VISA International are not employees of Visa International and, therefore, they are not responsible for the availability use, acts, omissions, or results of any medical, legal or transportation service. The Bank does not accept any responsibility for the arrangement or the use of such services.

14.44 ATM USAGE

- 14.45 The Card is operable with the help of a confidential PIN at ATM locations. The Cardholder's PIN shall be mailed/couriered to him and the Cardholder shall ensure that the same is received in a sealed envelope. The PIN should never be disclosed to any person or written down where any other person may discover it.
Any such disclosure or inadequate protection of the confidentiality of the PIN is entirely at the Cardholder's risk. All transactions conducted with use of the PIN will be the Cardholder's responsibility and he will abide by the record of the transaction as generated.

- 14.46 For all cash/cheque deposit transactions at the ATM, the Cardholder agrees that the ATM will produce a receipt and that no other receipt will be issued. All cash and cheque deposits will be subject to verification by the Bank and this verified amount will be binding on the Cardholder. The same will be processed normally on the next working day.

- 14.47 The Cardholder agrees that requests on the ATM such as chequebook requisitions and duplicate account statement request will be processed normally on the next working day.

- 14.48 The Card is acceptable at any Plus/Cirrus ATM network belonging to institutions other than HDFC Bank in India and abroad. The Bank will not accept responsibility for any dealings the Cardholder may have with the other institutions including but not limited to such services. Should the Cardholder have any complaints concerning any Plus/Cirrus ATM network establishment, the matter should be resolved by the Cardholder with the establishment and failure to do so will not relieve him from any obligations to the Bank. However, the Cardholder should notify the Bank of this complaint immediately.

- 14.49 There will be separate service charges levied for such facilities that will be announced by the Bank from time to time and deducted from the Cardholder's account linked to the card. In the situation that the account does not have sufficient funds to deduct such fees, the Bank reserves to right to deny such transactions. Such the decision of the Bank would be binding on the Cardholder.

- 14.50 The type of transactions offered on such ATMs may differ from those offered on the Bank's own network. The Bank will only support the minimum transaction set that will be offered at the ATMs belonging to other networks. The Bank reserves the right to change the transaction set without any notice to the Cardholder.

14.51 MERCHANT LOCATION USAGE

- The Card is acceptable at all electronic Merchant Establishments in India and abroad which display the Visa Electron / Maestro logo.

14.52 The card is for Electronic use only and will be acceptable only at Merchant Establishments, which have an EDC terminal. Any usage of the Card other than electronic use will be considered as Unauthorised and the Cardholder will be solely responsible for such transactions unless there is a specific offer by HDFC Bank to the customer. . Electronic usage is construed as the charge slip/transaction slip printed electronically from the EDC terminal.

14.53 The Card is operable with the help of the Cardholder's signature (only in case of card's issued with Visa Electron logo) or the PIN at EDC terminals installed at Merchant locations depending on the functionality of the EDC terminal.

14.54 Transactions are deemed authorised and completed once the EDC terminal generates a sales slip. The amount of the transaction is debited from the primary account linked to the card immediately. The Cardholder should ensure that the Card is used only once at the Merchant location for every purchase. The sales slip will be printed each time the card is used and the Cardholder should ensure that there is no multiple usage of card at the Merchant location at the time of purchase.

14.55 The bank will not accept responsibility for any dealings the Cardholder may have with the merchant including but not limited to the supply of goods and services. Should the Cardholder have any complaints concerning any Visa Electron / Maestro merchant establishment, the matter should be resolved by the Cardholder with the merchant establishment and failure to do so will not relieve him from any obligations to the Bank. However, the Cardholder should notify the Bank of this complaint immediately.

14.56 The Bank accepts no responsibility for any surcharge levied by any Merchant Establishment and debited to the Cardholder's account with the transaction amount. However, at Railway stations and Petrol pumps, transaction charges as per industry practice will be applicable.

14.57 The Cardholder must sign a Sales Slip whenever the Card is used at a Merchant Establishment and should retain his copy. The Bank at an additional charge may furnish copies of the Sales Slip. Any Sales Slip if personally signed by the Cardholder, but which can be proved as being authorised by the Cardholder will be his liability.

14.58 Any charge or other payment requisition received from a Merchant Establishment by the Bank for payment shall be conclusive proof that the charge recorded on such requisition, was properly incurred at the Merchant Establishment in the amount and by the Cardholder referred to in that charge or other requisition, as the case may be, by the use of the card except where the card has been lost, stolen or fraudulently misused, the burden of proof for which shall be on the card holder.

14.59 In case, a merchant wishes to cancel a completed transaction due to an error or on account of merchandise return, the earlier sales receipt must be cancelled by the merchant and a copy of the cancelled receipt must be retained in his possession. Reversal/Refunds of debits due to such transactions will be processed manually & the cancelled sales slip needs to be produced, if called for.

14.60 All Refunds and Adjustments due to any merchant / device error or communication link will be processed manually and the account will be credited after due verification and in accordance with Visa/MasterCard rules and regulations as applicable. The cardholder agrees that any debits received during this time will be honoured only based on the Available Balance in the account(s) without considering this Refund. The cardholder also indemnifies the Bank from such acts of dishonouring the payment instructions.

14.61 The Card is not to be used at the Hotels during Check-in and also at other locations where paying arrangement is done before completion of the purchase transaction or service.

14.62 The Card should not be used for any Mail Order / Phone Order purchases and any such usage will be considered as Unauthorised and the Cardholder will be solely responsible unless there is a specific offer by HDFC Bank to the customer.

14.63 **Quality of Goods and Services:** The Bank shall not be in any way responsible for merchandise, warranty or services purchased or availed of by Cardholder from Merchant Establishments including on account of delay and delivery, non-delivery, non-receipt of goods or receipt of defective goods from the order placed by the card holder. It must be distinctly understood that the Card facility is purely a facility to the Cardholder to purchase goods or avail of services and the bank holds out no warranty or makes no representation about quality, quantity, delivery or otherwise howsoever regarding the goods or services, and any dispute must be resolved by the Cardholder with the Merchant Establishment.

14.64 **CARD USAGE**

14.65 The Cardholder agrees that in case he has multiple accounts with the Bank, the Bank will decide the number of accounts, which will have the Card facility on them.

14.66 In case of Cards linked to multiple accounts, transactions at Visa/PLUS or MasterCard/Cirrus ATMs and Visa Electron/Maestro Merchant Establishments will be affected on the primary account linked to the card. In case there are no funds in this account, the Bank will not honour the transactions even if there is funds available in the other accounts linked to the same card.

14.67 The Bank will debit the accounts linked to the Card for the value of all purchases of goods or services, cash, fees, charges and payments effected by the use of the Card ("Transactions"). All Transactions will be reflected in the Account Statement of the Account(s), which are linked to the card. Such statements shall be mailed to the Cardholder every quarter to the mailing address as per the customers records with the Bank.

14.68 The Cardholder agree that the bank's record of transactions pertaining to his account(s) is conclusive and authentic which will be binding on him.

14.69 The annual fees will be debited to the account linked to his card on application/renewal at the Bank's prevailing rate. These fees are not refundable.

14.70 The Cardholder is advised to retain a record of transactions generated by the ATM / EDC terminal at Merchant Establishments with him.

14.71 The Cardholder agrees that he will be allowed to withdraw/purchase only a certain amount of cash every day irrespective of the credit balance in the account(s). This amount will be announced from time to time. Any attempt to violate this limit may lead to withdrawing of his Card facility.

14.72 The Cardholder agrees not to attempt to withdraw/purchase using the Card unless sufficient funds are available in the account. The onus of ensuring adequate account balance is entirely on him. Accounts that violate this condition will be classified as overdrawn accounts and he will have to rectify the account balance position immediately. In every such situation where the account gets overdrawn a flat charge would be levied in addition to the interest to be charged on the debit balance in the account. This charge will be determined by the Bank and will be announced from time to time.

14.73 In the event of an account being overdrawn due to Card transactions, the Bank reserves the right to set off this amount against any credit lying in any of the Cardholder's other accounts held jointly or singly without giving any notice.

14.74 In the event of the deliverables not reaching the customer, after the delivery of the same to the mailing address, and subsequent misuse of the same (if any), the responsibility for the same will rest with the customer and not the Bank.

14.75 Nothing in these terms and conditions shall affect the Bank's right of set-off, transfer and application of monies at law or pursuant to any other agreement from time to time subsisting between the Bank and Cardholder.

14.76 **INTERNATIONAL TRANSACTIONS**

14.77 The exchange rate used for all foreign currency transactions will be decided by the Bank and will be binding on the Cardholder.

RESIDENTS

14.78 As per RBI guidelines, the cardholders need not submit documentary evidence like invoice/bills, etc. for the use of the card for permitted purposes as per the Exchange control regulations, if the remittance involved is less than permissible limit (presently USD10000) or its equivalent and prima facie meets the exchange control regulations.

14.79 As per RBI guidelines, in case the amount on account of use of the Card during visits abroad exceeds the Cardholder's foreign exchange entitlements, the Cardholder should provide documentary evidence for the usage of foreign exchange utilised. The bank is authorised to report the matter to the regional office of the Exchange Control department giving full details.

14.80 As per the Exchange Regulations, for every foreign currency transaction the Cardholder should submit a duly completed A2 form and his passport endorsed for the foreign currency utilised.

14.81 In case the Cardholder is not contactable or not able to submit the same within the reporting time as specified by RBI, the Cardholder authorises and indemnifies the bank to fill in and submit the request for purchase of foreign exchange (A2 form) on behalf of the Cardholder.

NON RESIDENTS

14.82 The Cardholder authorises and indemnifies the bank to fill in and submit the request for purchase of foreign exchange (A2 form) on behalf of the Cardholder.

14.83 **DISPUTES**

14.84 A sales slip with the signature of the Cardholder together with the card number noted thereon shall be conclusive evidence as between the Bank and the Cardholder as to the extent of liability incurred by the Cardholder and the Bank shall not be required to ensure that the Cardholder has duly received the goods purchased / to be purchased or has duly received the service availed or to be availed to the Cardholder's satisfaction.

14.85 The Bank shall make bonafide and reasonable efforts to resolve an aggrieved Cardholder's disagreement with the applicable charge indicated in the statement within two months of receipt of the notice of disagreement. If after such effort, the Bank determines that the charge indicated is correct then it shall communicate the same to the Cardholder along with details including a copy of the Sales Slip or payment requisition.

14.86 The Bank accepts no responsibility for refusal by any establishment to honour the card.

14.87 As per Visa/Master Card International Operating Regulation, the complete resolution of the dispute may take upto six months. In case the customer wants to dispute any transaction, the same should be informed to the bank within 15 days from the date of the transaction.

14.88 **EXCLUSION OF LIABILITY**

Without prejudice to the foregoing, the Bank shall be under no liability whatsoever to the applicant in respect of any loss or damage arising, directly or directly out of:

14.89 Any defect in goods or services supplied

14.90 The refusal of any person to honour or accept a Card

14.91 The malfunction of any computer terminal

14.92 Effecting Transaction instruction other than by a Cardholder

14.93 Any statement made by any person requesting the return of the Card or any act performed by any person in conjunction

14.94 Handing over of the Card by the Cardholder to anybody other than the designated employees of the Bank at the Bank's premises

14.95 The exercise by the Bank of its right to demand and procure the surrender of the card prior to the expiry date exposed on its face, whether such demand and surrender made and/or procured by the Bank or by any person or computer terminal

14.96 The exercise by the Bank of its right to terminate any Card

14.97 Any injury to the credit character and reputation of the applicant alleged to have been caused by the re possession of the Card and/or, any request for its return or the refusal of any Merchant establishment to honour or accept the card

14.98 Any mis-statement, mis-representation, error or omission in any details disclosed by the Bank

14.99 Decline of a charge because of excess foreign exchange entitlements as prescribed by RBI guidelines issued from time to time, or the bank becoming aware of the Cardholder exceeding his entitlements.

14.100 Decline of transaction due to any reason at a Merchant location/ ATM.

14.101 **INSURANCE BENEFITS**

14.102 The Cardholder specifically acknowledges that the Bank will not be liable in any manner whatsoever by virtue of any insurance cover provided, and that the insurance company will be solely liable, in case of a death of a Cardholder and shall not hold the Bank responsible for any matter arising out of or in connection with such insurance cover, whether for or in respect of any deficiency or defect in such insurance cover, recovery or payment of compensation, processing or settlement of claims or otherwise howsoever, and all such matters shall be addressed to and sorted out directly with the Insurance company.

14.103 The Cardholder further acknowledges that the insurance cover so provided will be available to the Cardholder only as per the terms of the relevant insurance policy in force, and only so long as the Cardholder is and remains a Cardholder of the Bank with his account maintained in good standing. On the card/account being cancelled or withdrawn temporarily or permanently for whatever reason, the benefit of such insurance cover shall automatically and ipso facto cease to be available from such date of cesser of card/account. Further the Cardholder also agrees that even during continuation of his card/account, the bank may at any time (in their sole discretion and without giving any notice thereof to the Cardholder or assigning any reason thereof) suspend, withdraw or cancel the benefit of such insurance cover, and there will be no binding obligation on the bank to continue this benefit.

14.104 **TERMINATION**

14.105 The Cardholder may discontinue this facility any time by a written notice to the Bank accompanied by the Return of the Card cut into two diagonally. In the event charges are incurred on the Card after the cardholder claims to have destroyed the card, the Cardholder shall be entirely liable for the charges incurred on the Card whether or not the same are the result of the misuse and whether or not the bank has been intimated of the destruction of the Card.

14.106 The Bank shall be entitled to discontinue this facility at any time by cancelling the Card with or without assigning any reason whatsoever and by giving 7 days' notice and shall be deemed to have been received by the Cardholder within 7 days of posting to the Cardholders' address in India, last notified in writing to the Bank.

14.107 The Bank reserves the right to disclose customer information to any court of competent jurisdiction, quasi judicial authorities, law enforcement agencies and any other wing of Central Government or State Government.

14.108 **INDEMNITY**

14.109 The Cardholder agree to indemnify the bank against all liabilities, losses, damages and expenses which the bank may sustain or incur either directly or indirectly as a result of:

* Negligence / mistake or misconduct of the Cardholder

* Breach or non-compliance of the rules/terms and conditions relating to the Card and the account.

* Fraud or dishonesty relating to any transaction by the Cardholder or his employees / agents.

14.110 ATMs / EDC terminals are machines and errors could occur while in operation. You agree to indemnify the Bank for any such machine / mechanical errors/failures.

14.111 The Cardholder shall indemnify and hold harmless the Bank from any and all consequences arising from the Cardholder not complying with The Exchange Control Regulations of the RBI.

14.112 The Cardholder hereby indemnify the Bank fully against any loss on account of misplacement by the courier / loss-in-transit of the Debit Cards/PIN Mailer.

14.113 **TERMS**

14.114 HDFC Bank reserves the right to issue either Visa Card/MasterCard/ Maestro Card to the customer.

14.115 The cardholder shall be deemed to have unconditionally agreed to and accepted these terms and conditions by signing the card application form, acknowledging the receipt of the card in writing, by signing the reverse of the card, by performing a transaction with the card or by requesting of activation of the card to the Bank/Phone banking or after 10 days have elapsed since the date the card was dispatched to his address on record.

14.116 The Bank reserves the right to revise policies, features and benefits offered on the Card and alter these Terms and Conditions from time to time and may notify the Cardholder of any such alterations in any manner it thinks appropriate. The Cardholder will be bound by such alterations unless the Card is returned to the bank for cancellation before the date upon which any alteration is to have effect

14.117 The bank may introduce new services from time to time. The existence and availability of the new functions will be notified to the Cardholder as and when they become available. The changed terms and conditions applicable to the new services shall be communicated to the Cardholder. By using these new services, the Cardholder agrees to be bound by the terms and conditions applicable.

14.118 These TERMS form the contract between the Cardholder and the Bank. By applying for HDFC Bank Debit Card and accessing the service the Cardholder acknowledges and accepts these terms and conditions. These terms and conditions will be in addition to and not in derogation of the terms and conditions relating to any account of the customer.

GOVERNING LAW

These terms and conditions and/or the operations in the accounts of the Customer maintained by the Bank and/or the use of the services provided through Debit Card shall be governed by the laws of the Republic of India and no other nation. The Customer and the Bank agree to submit to the exclusive Jurisdiction of the Courts located in Mumbai, India as regards any claims or matters arising under these terms and conditions. The Bank accepts no liability whatsoever, direct or indirect, for non-compliance with the laws of any country other than the Republic of India. The mere fact that the Debit Card can be accessed by a Customer in a country other than India shall not be interpreted to imply that the laws of the said country govern these terms and conditions and/or the operations in the Debit Card accounts of the Customer and/or the use of Debit Card.

15. INDEMNITY

I agree that I shall indemnify and hold the Bank harmless against all actions, claims, demands, proceedings, losses, damages, costs, charges and expenses whatsoever which the Bank may at any time incur, sustain, suffer or be put to as a consequence of or by reason of or arising out of providing me Telephone Banking, Bill Payments Facility, Mobile Banking, or NetBanking facility, or by reason of the Bank in good faith taking or refusing to take or omitting to take action on any instruction given by me.